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Q.7 The office of President of India has evolved from being a Nominal head to institutional of significant influence. Examine the Constitutional provision related to President and analyze how role has evolved over year 38 Marks

Ans The President is Constitutional head of State represent unity and integrity of Country... India Constitution has Parliamentary System of governance where President is Ceremonial head.



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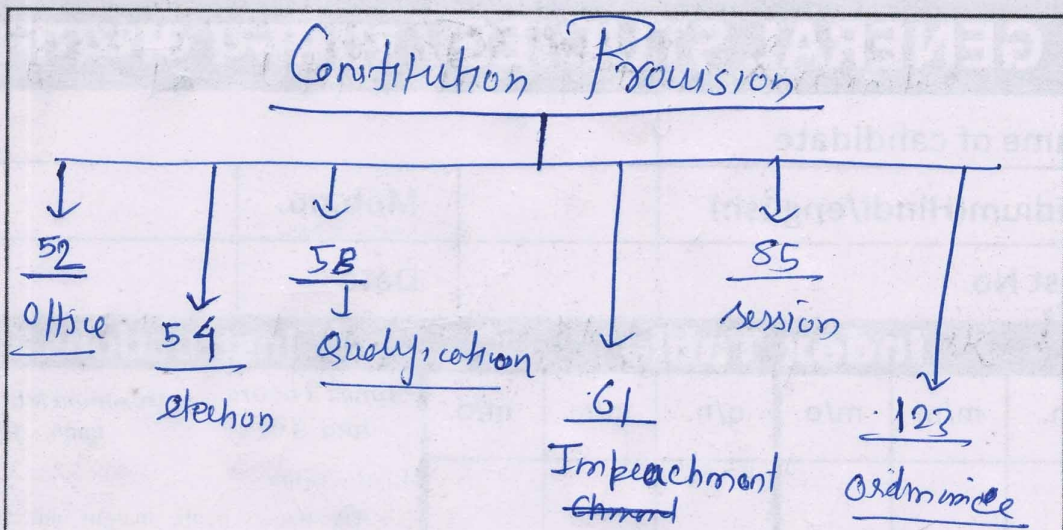
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The Role of President has evolved -  
from Nominal figure to a institutional  
Significance depending on political Circumstances.  
Circumstances

| <u>Role of President.</u> |                                                                     |
|---------------------------|---------------------------------------------------------------------|
| <u>Role</u>               | <u>Article</u>                                                      |
| 1) Executive →            | (i) <u>Art 53</u> → executive power of union is vested in President |
|                           | (ii) <u>Art 79</u> → exercise power on aid, advice of Com           |
|                           | (iii) <u>Art 77</u> → Conduct of business                           |



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|                                                  |                                                                                                                                                          |
|--------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2) <u>Legislative</u>                            | (i) <u>Art 85</u> → Summon, prorogue,<br>dissolve Parliament<br>(ii) <u>Art 111</u> → Assent to Bill<br>(iii) <u>Art 123</u> → Ordinance making<br>power |
| 3) <u>Financial</u>                              | (i) <u>Art 112</u> → Budget Approval<br>(ii) <u>Art 267, 266</u> → approval for fund                                                                     |
| 4) <u>Judicial</u>                               | (i) <u>Art 72</u> → Pardonning power                                                                                                                     |
| 5) <u>Military</u>                               | <del>Art</del> • Supreme Commander of<br>Armed force                                                                                                     |
| 6) <u>Discretionary<br/>power</u>                | (i) Hung Parliament, Dismissing<br>a govt                                                                                                                |
| <u>Evolution of President Role over<br/>Year</u> |                                                                                                                                                          |



### → Nominal head (1950-80s)

- 24th CAA bound president to give assent to constitutional amendment bill
- 42nd CAA = President to act on ~~pres~~ COM advice
- emergency By Fakhruddin Ahmed

### Assertion of Discretion (1980-1990)

- i) Rise of Coalition politics
  - ii) weaken influence of PM on president
  - iii) SR Bommai Case  
limited misuse of president rule
- i) KR Narayan said  
I am not a rubber stamp

### → More Active (2000-Present) Role

- i) Abdul Kalam sent office of profit Bill to Cabinet
- ii) Pranab Mukherjee defied advice of govt and commute death sentence



## Factors Leading to Evolution of Role of President

- 1) Political Equation and Personality
  - Strong personalities like Indira Gandhi, Modi ensure greater control
  - Likewise for president K.R. Narayan, Abdul Kalam, Pranab Mukherjee
- 2) Coalition Politics
  - President play role in selecting PM
- 3) Judicial interpretation
  - Bommai Case restrict use of 356
- 4) Single Party dominance
- 5) Increased Public Engagement
  - eg APJ Kalam, Mukherjee



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④ President play significant role  
in governance particularly in Crisis  
situation, & government formation.  
There is need of clear guideline  
on discretionary power. to strengthen  
democracy as given <sup>by</sup> Paul R Brass  
Considering president as Constitutional  
pillar of Democracy.